

IN THE HIGH COURT OF JAMMU AND KASHMIR
AT SRINAGAR
(THROUGH VIRTUAL MODE)

CPSW No. 510/2011

Nighat Parveen ...Petitioner(s)
Through: None
Vs.

Mr. Farooq Ahmad FakhtooRespondent(s)
Through: None.

CORAM: Hon'ble Mr. Justice Sanjay Dhar, Judge
(Through Video Conferencing from Jammu wing of the High Court)

(ORDER)
24.06.2020

The subject matter of this petition falls within the definition of 'service matters' as contained in Section 3(q) of the Administrative Tribunals Act, 1985 (*hereinafter referred to as 'the Act'*), which has become applicable to the Union Territories of Jammu and Kashmir and Ladakh, after coming into force of the Jammu and Kashmir Re-organization Act, 2019 w. e. f 31.10.2019. Section 29 of the Act provides for transfer of the pending cases of such nature to the Central Administrative Tribunal upon establishment of the Tribunal.

Vide the Gazette of India Notification No. G.S.R. 318 (E) dated 28.05.2020, a permanent Bench of the Central Administrative Tribunal stands established at Jammu with its jurisdiction extending to the UTs of Jammu and Kashmir and Ladakh and it has started functioning at Jammu. Accordingly, this petition (CPSW No. 510/2011) shall stand transferred to the Central Administrative Tribunal, Jammu Bench. Registry is directed to immediately transmit the record of the case to the Central Administrative Tribunal, Jammu Bench, where the parties shall appear on 15th February 2021.

(Sanjay Dhar)
Judge

Srinagar
24.06.2020
"Aasif"